

● WITH ABOUT 12,000 PEOPLE, THE NATION BECAME INDEPENDENT IN 1968 AFTER LONGTIME COLONIAL RULE UNDER THE UK, NEW ZEALAND, AUSTRALIA AND GERMANY

‘Say our name, Naoero’: A nation renamed stands up at the UN

Associated Press
New York, September 23

HIS VOICE forceful and proud, he rose in front of the world's largest gathering of leaders on behalf of his nation and announced that he had something important to say.

The tiny South Pacific island nation of Nauru, its president said, had altered its name - and reclaimed its heritage in the process.

"I have travelled far," David Adeang said Tuesday at the United Nations. What was known to the world for many years as Nauru, Adeang said, was returning to the name and pronunciation of its past: Naoero.



President of Naoero David Ranibok Adeang at the 81st session of UNGA on Tuesday. AP

"There are moments in the life of a nation when its people are called to remember who they have always been," Adeang said in his speech at the UN General Assembly in New York. "This is such a moment for us."

Though the names are similar and, in essence, the same word, the shift in spelling and



pronunciation represents the nation's effort to recast - rebrand, even - itself for its own people as much as for the outside world.

He called it not a change but an effort to "affirm a truth".

"For many years, the world

has known our country as Nauru. Nauru is how our name sounded to those who found it hard to say, and the world kept it," Adeang said. "But it is not the name our people used among themselves."

The nation, an eight-

square-mile island with about 12,000 people, became independent in 1968 after longtime colonial rule under the United Kingdom, New Zealand, Australia and Germany.

It announced the renaming in August after signalling its intent in February.

The country's international code is changing from NRU to NRO and its people will be known as dei-Naoero instead of Nauruan. Commonly known abroad by the pronunciation of Now-roo, the new name is spoken as Now-ero.

A name, obviously, is a pivotal and intimate expression of a nation's identity on any stage, domestic or international.

Adeang's remarks Tuesday reflected this as he carefully pronounced the name to differentiate it from its former pronunciation.

"We do not make this choice to erase our past. We make it because we honor it," he said.

"That name carries the memory of our ancestors, our language, and our identity. It has been there all along. Never lost, never absent. Today, we restore Naoero."

And then, after completing his address about the issues that face his people - rising seas, economics, respect on the global stage - he concluded his address with three words: "Say our name."

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POLICY

Tulu’s ‘official’ tag in Karnataka: What this means

Akram M Bengaluru, September 23

THE D K Shivakumar-led Congress government in Karnataka last week decided to accord Tulu the status of second additional administrative language in two districts of coastal Karnataka: Dakshina Kannada and Udupi. The announcement came during a special state Cabinet meeting in Mangaluru.

A Dravidian language

Tulu is classified among the five Dravidian languages, the others being Tamil, Telugu, Kannada, and Malayalam. It is spoken mainly in the coastal districts of Dakshina Kannada and Udupi in Karnataka, and parts of northern Kerala. The language has a strong oral tradition, rich folklore, and cultural practices like Yakshagana, Bhoota Kola, and others. Although it had its own script, today it is largely written using the Kannada script. Although there has been migration of the Tulu-speaking population to metros such as Mumbai and Bengaluru, around 1.8 to 2 million people are native speakers.

Behind the demand

The special status for Tulu means government offices in Dakshina Kannada and Udupi districts can now use the language for official communication alongside Kannada. The state Cabinet also decided to grant Rs 82 lakh every year for translation, training, and activities related to language use to facilitate implementation.

For decades, Tulu-speaking communities have sought recognition for their language from the government. They believed that despite its cultural depth and sizable speaker base, Tulu was not accorded the same status as other regional languages such as Konkani or Kodava. Over the years, several legislators from coastal Karnataka have raised the demand in the legislature. Among the key arguments is that Tulu speakers were not granted a separate linguistic state during the reorganisation of states in 1956, as it was done for other Dravidian languages. There has also been a sustained social media campaign by Tulu speakers for recognition.

Official status also allows for including Tulu in education, signage, and cultural promotion. As of now, only a few signs in the region are in Tulu. The primary challenge in implementation is that not many know the Tulu script. Although it has been revived in recent years, the language is not taught in schools and colleges, making it harder for the general populace to read it.

Challenges in implementation

Political significance For years, coastal Karnataka has been the BJP’s bastion and is known for its communally charged politics. Efforts by the Congress to make inroads into the region by consolidating castes have been futile. The decision to hold a Cabinet meeting in Mangaluru to accord Tulu the special status is seen as an attempt to reach out to voters by appealing to their cultural heritage and practices.

LEGAL

EC appointment: Why SC placed matter before CJI



AMAAL SHEIKH

A TWO-JUDGE bench of the Supreme Court on Wednesday referred petitions challenging the 2023 law on the appointment of the Chief Election Commissioner (CEC) and other Election Commissioners (ECs) — which excludes the Chief Justice of India (CJI) from the process — to the CJI to consider forming a Constitution Bench (which has a minimum of five judges).

What the joint order said

While Justices Dipankar Datta and Satish Chandra Sharma were split on referring the matter to a larger bench, they agreed that it should be placed before the CJI. They said sending the issue first to a three-judge bench would be of “little worth” and would only delay a final decision on the important Constitutional questions raised by the case. The judges flagged the long delays in deciding Constitutional references. They noted that the Anoop Baranwal case (2023) took eight years to reach a final judgment and cited other references that remained pending for years. Calling such delays “a source of institutional embarrassment”, they urged the CJI to consider setting up a permanent five-judge bench for Constitutional cases.

The ‘Anoop Baranwal’ case

The challenge to the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023 traces its origins to the Supreme Court’s judgment in *Anoop Baranwal v. Union of India* in March 2023. In that ruling, a Constitution Bench had noted that Parliament had not enacted a law governing appointments to the Election Commission despite Article 324 of the Constitution contemplating one. It laid down an interim mechanism under which appointments would be made by a committee comprising the Prime Minister, the Leader of Opposition in Lok Sabha and the Chief Justice of India — until Parliament enacts a law.

The bench had underlined the importance of an independent Election Commission and observed that those entrusted with conducting elections must be insulated from executive influence.

THE 2023 LAW AND THE CHALLENGE IN TOP COURT: A TIMELINE

1950: Article 324(2) of the Constitution is framed. It provides that the Chief Election Commissioner and other Election Commissioners are appointed by the President, subject to any law Parliament may make on the matter.



SEPTEMBER 2026: A two-judge SC bench delivers a split verdict on petitions challenging the 2023 Act. While Justice Dipankar Datta holds that the challenge could be decided on existing Constitutional principles, Justice Satish Chandra Sharma says it raises substantial and novel Constitutional questions. Both judges issued a joint order referring the matter to the CJI to constitute a Constitution Bench to avoid further procedural delay.

1950-2023: For 73 years, Parliament does not enact any new law on this. Appointments to the Election Commission (EC) are made under the executive framework.

2015: A writ petition is filed under Article 32, challenging the absence of a law governing appointments to the EC.

2018: A two-judge bench refers the matter to a Constitution Bench.

MARCH 2023: Eight years on, a five-judge Constitution Bench delivers its judgment in the ‘Anoop Baranwal’ case, holding that appointments to the EC should be made by a committee comprising the Prime Minister, the Leader of the Opposition and the Chief Justice of India until Parliament enacts a law.

DECEMBER 2023: Parliament passes the Chief Election Commissioner and other Election Commissioners Act, 2023. The law replaces the Chief Justice of India with a Union Cabinet Minister nominated by the Prime Minister, resulting in a panel with a 2:1 executive majority.

Split verdict

Justice Datta said the petitions could be decided by the present bench. He said the top court had already settled the governing Constitutional principle in *Anoop Baranwal*.

Justice Sharma said a Constitution Bench should hear the case as the SC is examining the Constitutional validity of the 2023 Act for the first time.

ister nominated by the PM and the Leader of Opposition, he observed that a minister bound by collective responsibility “cannot be expected to defy his own nominator”. Thus, the presence of the Leader of Opposition in the Selection Committee becomes “largely ornamental”, he said. He also emphasised the perception test — “it is not enough for the ECI to be independent, it must also appear to be independent”. On the petitioners’ argument that the law gives the executive overwhelming influence over appointments, he said it “does appear to have substance”, while stating that these were only *prima facie* observations.

Justice Datta also rejected the government’s comparison between the EC selection process and the collegium system for judicial appointments. He said judicial appointments involve the executive at multiple stages and described the popular notion that “judges appoint judges” as a “myth”. He raised concerns about the selective implementation of Collegium recommendations and said the absence of a neutral member in the Collegium could not justify the absence of a neutral member in the EC appointment process. He described the comparison drawn by the government as “disingenuous, evasive and disquieting”.

Constitution Bench issue: What Justice Sharma said

Justice Sharma disagreed with Justice

CLIMATE

In parched Maharashtra, why drought can’t be declared yet

Shubhangi Khapre Mumbai, September 23

CALLS TO declare a drought are rising in Maharashtra, with the El Niño-driven rain deficit hitting the state’s agriculture-dependent economy hard. Water scarcity has compounded the crisis, setting back the kharif season and clouding prospects for rabi. While Opposition leaders, including Sharad Pawar, have asked that a drought be declared, Chief Minister Devendra Fadnavis has said the government is taking “all steps necessary” to deal with the “alarming” situation.

Why has drought not been declared officially?

Under the National Disaster Response Fund (NDRF) rules, drought declaration for kharif (the monsoon cropping season, which runs from June to October) requires an assessment that can begin from October 5, once the monsoon starts to withdraw. For rabi, (the winter cropping season from October to April), assessment can be held in March 2027.

There is no single definition of drought accepted across India. States have the authority to declare a drought based on local conditions. But the state government’s report should conform to parameters specified under NDRF norms, and disaster relief funds can be unlocked by the Centre. Maharashtra has decided to submit a proposal to the Centre for financial assistance after October 5.

The state government has begun surveys and *panchanamas* to assess crop loss, so that the administration can quantify losses in terms of both food production and finances. Once this report is submitted, before releasing relief funds, a central team will visit the affected regions to make its own assessment.

Under NDRF rules, drought declaration is based on crop loss, the moisture adequacy index (used to assess soil health), and rainfall deficit, along with decline in food production and labour migration in search of work. Sowing must fall below 50% of total cultivable kharif/rabi area, drinking water shortage must be severe, groundwater tables

State, Centre roles

There is no single definition of drought accepted across India. States have the authority to declare a drought based on local conditions. But the state government’s report should conform to parameters specified under NDRF norms, and disaster relief funds can be unlocked by the Centre.

must be shrinking, there must be fodder shortage, and rainfall deficit must be up to 70%. Across Maharashtra, kharif sowing was delayed this season due to erratic rain — instead of June 10, sowing began only on July 15. Post-sowing rain failure then stunted flowering and fruiting. The worst-hit crops are soybean and cotton, the mainstay for small and marginal farmers in Marathwada and Vidarbha. The dry spell has also stunted sugarcane growth in Marathwada and parts of western Maharashtra. During the monsoon session in July, the CM announced a Rs 40,385-crore farm loan waiver, with an additional Rs 50,000 incentive for those who repaid loans regularly.

What is the water situation?

A major concern is drinking water scarcity. Data up to September 20 shows Maharashtra’s 138 major dams at 85% capacity and 264 medium dams at 65% — down from 96% and 77%, respectively, at the same time last year. The state’s 2,630 small and micro dams are worse off, at just 43%, compared with 57% a year ago.

Datta and held that the challenge must be referred to a Constitution Bench. He said that the Supreme Court is examining the Constitutional validity of the 2023 Act for the first time. “There is no authoritative decision of this court till date pronouncing on the constitutional validity of the said Act,” he said adding, “The decision on these writ petitions would be the first of its kind and it is all the more necessary that a reference is made.”

The petitioners, however, had argued that the central legal question that the selection must be an independent process has already been decided by the 2023 Constitution Bench ruling.

For Justice Sharma, the key question was whether Parliament was justified in replacing the CJI with a Cabinet minister nominated by the PM. He said: “Whether or not Parliament was justified in not including a neutral selector in the selection committee” is “an important question arising for the first time before this court”. Since this question “has not been dealt with in any precedent”, he said, Article 145(3) left “no room for a decision on such question finally by the present combination” of two judges. He viewed the government’s arguments on separation of powers and the comparison with the collegium system as issues that required examination by a larger bench.

What is a Constitution Bench

As per Article 145(3), a Constitution Bench of five or more judges decides a “substantial question of law” involving the interpretation of the Constitution. A case does not go to a larger bench merely because it involves the Constitution. The question must be “unsettled” — that is, one the court has never authoritatively answered before. Constitution Bench rulings also carry greater weight than ordinary judgments.

Split verdicts often trigger referrals. When two judges cannot agree, the matter goes to the Chief Justice, who decides whether to send it to a larger bench. But the split itself does not automatically warrant a Constitution Bench — the court must still be convinced the dispute raises a substantial Constitutional question requiring authoritative determination.

In October 2022, the top court delivered a split verdict in the Karnataka hijab case. The matter was referred to a larger bench and remains pending more than four years later. Earlier this year, another split verdict arose on Section 17A of the Prevention of Corruption Act. That matter, too, went to a larger bench.

Regionwise, Marathwada, with the most number of dams at 929, has 46% water as compared with 81% last year. It is followed by Amravati division at 64%, Nagpur division at 72%, Pune at 88%, Nashik at 83% and Konkan at 76%.

What is the status of rainfall in Maharashtra?

According to the India Meteorological Department (IMD), 31 of 36 districts in Maharashtra are rain-deficient, with 20 of these facing a deficit of 25% to 58%. Beyond the deficit, shifting rain patterns have added to the damage: In more than 100 of the state’s 355 drought-hit talukas, gaps between rain spells have stretched to 40-60 days. As a result, the main kharif crop, sown across 147 lakh hectares, has withered.

In a departure from past patterns, where rain did fall, it was short and intense — damaging soil health and causing erosion in some areas. Maharashtra’s agriculture is largely rain-fed; its irrigation potential, at under 20%, is much lower than in states like Uttar Pradesh and Bihar.

India rejects reference to J&K in OIC communique

Divya A
New Delhi, September 23

INDIA ON Wednesday categorically rejected references to the Union Territory of Jammu & Kashmir in a joint communique released by the Organisation of Islamic Cooperation (OIC) Contact Group on Jammu & Kashmir, after a meeting was held on the sidelines of the 81st session of United Nations General Assembly (UNGA) in New York.

The statement came hours after Turkish President Recep Tayyip Erdogan had also raised the Kashmir issue during his address to world leaders on Tuesday. Alongside Pakistan, Turkey, Saudi Arabia, Azerbaijan and Niger are part of the 57-member group.

“The OIC has no locus standi to pronounce on matters that are strictly internal to India. The entire Union Territories of Jammu & Kashmir and Ladakh are integral and inalienable parts of India, and no amount of repetition of politically motivated propaganda can change this reality,” said a statement by the Ministry of External Affairs (MEA) on Wednesday.

“Repeated endorsement of such motivated narratives only raises serious questions on the credibility of OIC,” it said, while rejecting the unwarranted and “factually incorrect” references to India in the joint communique of the so-called OIC Contact Group.

“Instead of offering a platform to Pakistan to peddle its fabricated and motivated propaganda, the OIC will be better advised to counsel Pakistan, which has a well-documented record of supporting and sponsoring terrorism, to look inwards and address the continuing threat of terrorism emanating from territories under its control,” the MEA said.



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RAMNATH GOENKA

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BECAUSE THE TRUTH INVOLVES US ALL

Two ECs stand up to ask; CEC must answer, SC must not turn away

IN A sprawling democracy with millions of moving parts, electoral rolls must be cleaned up and updated periodically and as the constitutional authority tasked with ensuring free and fair polls, conducting the Special Intensive Revision is the Election Commission's responsibility. Linking the deletion of voters across states — 13 crore names struck off the draft voter rolls — to electoral outcomes is an argument more political than empirical. This newspaper's investigation into the ECI's functioning, however, points to a betrayal of trust — of the people, by one of the country's most storied institutions. It shines the light into an institution's black box and reveals a disturbing story. What makes it so compelling is that it cannot be dismissed as the all-too-familiar political thrust and parry that has narrowed the inner lives of several other institutions. All three members of the Commission were handpicked by the NDA government. Yet, two Election Commissioners objected on record — 14 times in 10 months — to steps taken by the Commission as the SIR unfolded. Their concerns were not addressed. By all accounts, they went unheard and unheeded.

Election Commissioners Sukhbir Singh Sandhu and Vivek Joshi raised a string of red flags. They said they were being kept in the dark in a body that should forge a consensus or, failing that, abide by the majority. They said changes to Form 6 for new voters flew in the face of rules and made the exercise more punishing. They said the centralisation of the voter database undercut the ECI's claims to accountable and decentralised functioning. When their pushback within the four walls of their institution made no dent, they appealed to the Cabinet Secretary, the country's top bureaucrat. That is heartening — two Commissioners pointing, repeatedly, to the erosion of safeguards and guardrails, checks and balances. But Chief Election Commissioner Gyanesh Kumar made no attempt to address his colleagues' concerns. That silence frames the crisis and the institution's challenge.

THESE REVELATIONS connect the dots, outside to inside. Much of what Sandhu and Joshi flagged has echoed, in letter and spirit, concerns already being raised outside the ECI on the SIR. This newspaper, for one, consistently tracked the flaws in the process on the ground. The helpless scramble among the poor and undocumented when it was first rolled out in Bihar. The tortuous layers it added on in West Bengal, where it also invited fears of targeting of minorities and led to the disenfranchisement of nearly 27 lakh voters. The face-offs between election officials and BJP party workers in four booths in Godda, Jharkhand, more recently. It had become clear that the process that was meant to strike a delicate and compassionate balance — between the need to maintain the integrity of the electoral rolls and the imperative to count every legitimate voter in — was tilting against vulnerable voters. It was doing so by shifting the burden of proof onto the voter, by demanding difficult paper-work within unrealistic time-frames, by setting up an appellate process that was unconstrained by any deadlines, going all the way to the edge of the election and even stretching beyond it.

In thus showing itself to be distrustful of the Indian voter, the SIR broke with the ECI's own record and traditions of inclusion. Instead of reaching out to the last voter, it put her on trial, set up a hurdle race for her at every step. She had to stand in long lines, and run around to gather proof that she belonged. Or rather, to disprove the implicit assumption that she didn't. The SIR was morphing into an opaque and heartless citizenship test. It would not only determine whether or not she could cast her vote, but also whether she could avail of her rightful share of government benefits and schemes.

EVEN AS EVIDENCE mounted of the SIR losing its way, the Supreme Court did not ask the ECI the questions it should have. In the past, as the custodian of the constitutional balance, the Court has admirably upheld the poll monitor's autonomy and independence vis-à-vis the executive. But over the last few months, its reluctance to intervene on behalf of the citizen facing a daunting and oppressive process has seemed, with due respect, troubling.

The SC did intervene in Bihar, and to good effect. It directed the ECI to accept Aadhaar as one of the documents, nudged it to give reasons for deletions. But it gave the ECI the benefit of every doubt ever since. In May, ruling on petitions challenging the SIR, it unexceptionably underlined the ECI's constitutional mandate to ensure accurate and reliable electoral rolls, and also gave it unfettered procedural latitude "in such manner as it may think fit". It held that the ECI can make only a "limited inquiry into citizenship" but at the same time empowered it to set the stage for a citizenship test by the government's "Competent Authority".

This latitude cannot continue after what is now known. The Court must no longer turn away from the serious questions about the ECI, they are also on record within. To begin with, Form 6 must be restored to its original version, the one that did not allow the shadow of their parents' deletion in a deeply contested SIR to hang over their child. It must restore access to the voter database for officials in the states' electoral machinery. Free and fair elections are not one institutional compact among many, they are the cornerstone of how this nation, through its citizens, shapes its present, and future; they are the reason players respect the rules and losers accept the verdict. The black box has been opened and it will not be shut again. Commissioners Sandhu and Joshi have listened to their conscience, raised key questions. The CEC must answer them, point by point — if it needs a nudge from the highest court, so be it.

New cat in habitat, and some glimmer of hope

PENGUINS AND tiger cats and octopi, oh my! A myriad of new species being discovered just as doomsdayism starts to colonise the imagination seems, almost, like a message to abandon anthropocentrism. The cheer that greeted the discovery of a new species of wild cat, the *Leopardus tilcayo*, in Bolivia may have been the loudest — it's the first discovery of a feline species in a 100 years — but celebrate, too, the new penguin species (also the first in a century) on a group of subantarctic islands. And the snake species, named after Guns 'N' Roses guitarist Slash, in New Guinea.

As a 2025 University of Arizona study shows, the quest to identify every species has picked up pace in recent years. Fifteen per cent of all known species were discovered in the last 20 years.

The human predilection for the photogenic has meant that a majority of these discoveries receive little attention beyond the scientific and conservation communities. But the wonder that is the biosphere deserves more.

I voted for three decades. Why is my SIR incomplete? Commission has no answer

YESTERDAY, *The Indian Express* laid out, in gory detail, the lapses in the administration of the Special Intensive Revision (SIR) of the electoral rolls. Two of the three Election Commissioners objected on record 14 times in 10 months. The Supreme Court called the notices going out to Delhi's voters "mechanical" and "machine-generated". My story is unlikely to make even a footnote to that account. But before the advent of AI, every serious student knew that you read the footnotes, because that is where you learn how the author actually thinks.

I live in one of the elite colonies of New Delhi. I have voted for three decades in both national and state elections. My record sits in the Election Commission's database, and the Commission has reproduced it for me, correctly and electronically. Yet the Commission has not been able to approve my

application? But wait. My application is clean. My name has not changed. My address has not changed. I am, as far as I can tell, still alive. And I have followed every step required of me.

I was told to take my documents to the Booth Level Officer. After a long wait in a long line, the officer went through my papers, found nothing wrong, and told me to come back in about two weeks and stand in another line.

On the appointed day, the meeting was at noon, outside a school, just as six-year-olds were being picked up. About 30 of us stood, standing room only, to present applications in which no error had been found to one officer. He worked patiently through each file and then photographed it with his mobile phone. Each applicant took at least 20 minutes. The purpose was never explained since there was nothing to correct.



vote for anyway.

Anger is not an argument, so here is the argument.

Any process that cleans a voter list can make two kinds of mistakes. It can strike off a genuine voter or it can leave a ghost on the roll: Someone dead, departed or counted twice. No process avoids both. The design question is which mistake you fear more, and therefore where you place the burden of proof. Our criminal law answered that question long ago: Better that 10 guilty men go free than that one innocent suffer. The accused does not have to prove his innocence; the state has to prove his guilt.

For the voter, the answer should be the same, and for a simple reason. Striking off a genuine citizen takes away his vote with certainty. A ghost on the roll does harm only if someone turns up at the booth and votes in the dead man's name. and against that

roll and went house to house to verify who had moved, who had died and who had newly turned 18. The record was presumed correct until shown to be wrong. Today, the voter is presumed absent until he proves himself present.

And when the burden is on the voter, the state need not measure its own errors. Nobody has published how many genuine voters were wrongly struck off, because nobody was asked to find out. The Chief Election Commissioner has cited "zero appeals" in 12 states as proof that the process worked. That tells us how hard it is to appeal, not how many were wrongly deleted.

More than 13 crore names have been struck off draft rolls across the country. Some of those deletions were needed. How many were not, we do not know, and under this design, we are not meant to know. I am one of the lucky ones: I can afford to stand

● **WHAT THE OTHERS SAY**
Another term for this governing coalition would turn Israeli society into a collection of gangs and militias.
— *Haaretz, Israel*

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Chief Election Commissioner is not the Election Commission of India



S Y QURAISHI

FOR MORE than a year, I have written critically about the Special Intensive Revision (SIR) of electoral rolls: Its *de novo* character, its documentary burdens, its treatment of EPIC, its emphasis on deletion, and the shocking numbers left out of draft rolls. I did so with some diffidence. The Election Commission (ECI) is an institution I served for many years. I know its strengths, and I have often called it one of the great gifts of our Constitution.

After yesterday's disclosures in *The Indian Express*, I wonder whether I was critical enough. The investigation reports that Election Commissioners Sukhbir Singh Sandhu and Vivek Joshi recorded objections at least 14 times in 10 months to decisions and orders which, they said, were taken without their knowledge. Their concerns went to the core of the ECI's work, including the registration and deletion of voters, the restoration of names, Form 6, appeals in electoral-roll cases, and control over the digital architecture of the rolls. If the record is as reported, the controversy changes fundamentally. The question is no longer only whether the SIR was wise, fair or administratively sound. A real question arises: Were decisions being taken by the ECI at all? If not, can these be held to be legal?

The law is clear. Section 18(2) of the Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023 provides that all business of the Commission shall, as far as possible, be transacted unanimously. If the CEC and Election Commissioners differ, the matter "shall be decided according to the opinion of the majority". Section 18(1) goes further: Even the procedure for transaction and allocation of business may be regulated only by unanimous decision. Unanimity is the statutory norm. Where it fails, the majority decides. Unilateralism has no place. The principle is older than this statute. In *T N Seshan vs Union of*



ILLUSTRATION: C R SASIKUMAR

India (1995), the Supreme Court stressed that Article 324 entrusts elections to the ECI, not to an individual. Its warning seems written for the present moment: "It would be wrong to project the individual and eclipse the Election Commission." That sentence deserves to be framed in Nirvachan Sadan.

This is not the familiar case of one Commissioner dissenting from two colleagues. Here, two of the three members, a majority of the Commission, say decisions were taken without their knowledge. They were not outvoted. They were apparently bypassed. A majority cannot be a dissenting minority. If two Commissioners differ from the CEC, Section 18 tells us whose view prevails. The legal consequences are serious. Consider any substantive decision which the law vests in "the Election Commission" but was taken in its name without being placed before the Commission, or without cover from a lawfully adopted allocation of business. Such a decision, *prima facie*, is *ultra vires*. A letterhead cannot supply authority that the statute withholds. The Commission is a three-member constitutional body. It is not another name for its chairman.

The Form 6 episode illustrates the problem starkly. Joshi reportedly recorded in May that Form 6, prescribed under the Registration of Electors Rules, could not be altered by an SIR direction without amending the Rules. Sandhu concurred. Yet the altered form appeared on ECINet. In August, Sandhu called the change

The ECI is an institution I served for many years. After yesterday's disclosures in 'The Indian Express', I wonder whether I have been critical enough of the SIR

"unauthorised/illegal" and sought its immediate removal. There was not merely an absence of consensus here. There was a recorded majority view against the change.

More troubling still are the disclosures about ECINet. The ERO is the statutory authority for additions, deletions and corrections. Yet the two Commissioners repeatedly warned that access to the electoral-roll database was being centralised in Delhi, and sought safeguards, including an independent technical audit. In Goa, 97 people were reportedly found eligible by EROs after producing documents, but the software did not permit their restoration. Technology cannot rewrite a statute. A computer programme cannot overrule a statutory officer.

Then there is West Bengal. Of 38.31 lakh appeals filed before tribunals, 22.21 lakh were filed by deleted voters seeking restoration. Another 16.10 lakh were reportedly by the ECI seeking deletion of voters. Sandhu asked who had authorised appeals "on behalf of ECI", recording that neither he nor Joshi had been informed. When a majority of a constitutional body asks who authorised litigation in its name, the question is not trivia.

There is also a personal point. I owe Sandhu and Joshi an apology, not for anything I said publicly but for thoughts I privately entertained. Watching the ECI keep an almost monolithic public face during the SIR controversy, I sometimes wondered whether the two Commissioners were being too timid, and whether their silence meant ac-

quiescence. The report suggests otherwise. They were putting objections on file, questioning decisions, seeking safeguards around the electoral database, and even approaching the Cabinet Secretary when they believed institutional processes had been breached. One may still ask whether they should have spoken publicly. But conscience recorded on file is conscience nevertheless.

There is little satisfaction in feeling vindicated. Since the Bihar SIR began, I have questioned the departure from the ECI's tradition of inclusion, the opacity surrounding deletions, the treatment of EPIC, the documentary burden, and the extraordinary contraction of draft rolls. Those were sometimes dismissed as criticism from outside. We now know strikingly similar questions were being asked inside the ECI. That is the real significance of these revelations.

The response should be institutional, not partisan. The Commission, meeting as a Commission, should do the following: Disclose which major SIR decisions were approved unanimously, which were decided by majority, and under what valid allocation any others were issued. Review every decision that two Commissioners have challenged as lacking approval, and withdraw any found to have been taken without lawful authority. Restore Form 6 to conformity with the statutory Rules. Subject ECINet to an independent technical and legal audit. Ensure that statutory EROs can exercise the powers Parliament gave them. Disclose the authority under which appeals were filed in the ECI's name. Where the Commission will not act, the Supreme Court will have to step in.

For years, the central question about the ECI has been whether it is independent of the executive. Today another question is unavoidable: Is the Election Commission functioning as an Election Commission? The Constitution created a Commission. Parliament prescribed collective decision-making. The Supreme Court warned against allowing an individual to eclipse the institution. A constitutional authority that demands strict compliance with electoral law from nearly a billion voters must begin by complying strictly with the law governing itself.

Quraishi is former chief election commissioner of India and the author of An Undocumented Wonder: The Making of the Great Indian Election

Dialogue, not agitation, holds key to Ladakh's political future



ASHISH KUNdra

LAST SEPTEMBER, a political protest in Leh went awry. Four young people were killed in police action against a demonstration that turned violent; dozens more, including police personnel, were injured. It was a monumental tragedy. A judicial inquiry was ordered. Ladakh was shrouded in grief. A year later, the process of political dialogue and engagement with Ladakh's leadership continues. The tangible progress deserves to be judged on its substance, not rhetoric.

The roots of Ladakh's political demands go back much further than last September. Ladakh was once its own kingdom, sitting astride the Silk Route. Its sovereignty ended in 1834, when Dogra forces overran the region, subsuming it into the princely state of Jammu and Kashmir. After 1947, Ladakh's Buddhist and Shia communities found themselves governed from Srinagar, in a political system centred largely around the Kashmir Valley. A political movement took birth, demanding direct rule from Delhi. In 2019, the central government acquiesced, carving Ladakh out as a Union Territory. It was a significant concession, even if it did not settle every grievance.

Ladakh's population is more heterogeneous than is imagined. Buddhists of Tibetan descent, Muslim communities including Baltis, Sunnis, Shias and Noorbakshis, and Christian, Hindu and Sikh minorities are spread across 60,000 sq km, sandwiched in the borderlands between Pakistan and China. Leh and Kargil have been the fulcrums of administration. In response to demands for more decentralised governance, five new districts have been created, each slated to get an elected Hill Development Council. Preparations are underway for panchayat elections. The goal is to ensure a genuine devolution of administrative and political power.

What is not in dispute is how much the government has delivered. Roads now reach valleys that were once a full day's hard travel away. Sustained investment in border infrastructure has transformed connectivity. The 13 km-long Zojila tunnel is nearing completion. The world's longest high-altitude single-tube tunnel will end Ladakh's winter isolation. Nearly 20 flights land in Leh daily each summer. A new airport terminal and a second airstrip

at Nubra are in the works. Telecom connectivity is expanding rapidly under the Bharat Net programme. In remote villages where winter temperatures fall 60 degrees below freezing point, the power grid is finally arriving this year. Families will now be spared the annual ritual of migration to the plains. Schools and public institutions are being made winter-friendly. Nearly every rural household has piped water under the Jal Jeevan Mission. New reservoirs, Him Sarovars, are being built to store

meltwater as glaciers retreat. This is a progressive mitigation measure against the growing threat of climate change. The government is proactively supporting the rural farm economy, focused around pashmina, apricot and dairy sectors. Floriculture and sea buckthorn cultivation are getting special attention. Tourism is booming. This is a testament to solid development.

The current negotiations between Ladakh's representatives and the Centre revolve around a single demand: A democratic structure that protects land, jobs, culture and a fragile environment. The Centre's approach has been one of accommodation and constructive engagement. A new constitutional arrangement has been offered under Article 371, with a directly elected UT-level body holding legislative, executive and financial powers. This sui-generis model will ensure constitutional and legal safeguards for land and culture. It is an imaginative blueprint without precedent, tailored specifically to Ladakh's circumstances. On jobs, Ladakh already has 95 per cent reservation of local positions for residents (including educationally backward classes and economically weaker sections). Nearly 5,000 youngsters have been given government employment and thousands more are set to be recruited. Ladakh administrative and police services have been mooted to ensure that core administrative jobs are handled by local youth. These are the kind of concrete, negotiated commitments that take time to design properly and are easy to undervalue because they were not won through confrontation.

It would be facile to read last September's violence as a failure of the political process. Patience is not a glamorous virtue in politics. It earns no headlines. Political negotiations take time. Consensus-building is a slow, painstaking process, which needs strong foundations of trust and a spirit of accommodation. It is easy to fall into a delusional trap that agitations alone lead to solutions. There must be candid acknowledgement that the Centre has moved further and faster on Ladakh's behalf in six years than in the preceding seven decades. Ladakh's own leadership must extend the courtesy of the same patience it is asking Delhi to show.

The author is chief secretary, Union Territory of Ladakh. Views are personal



Rural-urban divide in tourism widens, families from Tamil Nadu holiday most

Siddharth Upasani
New Delhi, September 23

FAMILIES FROM Tamil Nadu account for almost a quarter of all overnight holiday trips made by Indians, comfortably higher than Maharashtra in second and Karnataka in third.

Meanwhile, families from Uttar Pradesh, West Bengal, and Bihar are together responsible for more than 30% of all 'health and medical' related overnight trips, a new government survey conducted from July 2025 to June 2026 showed, with the numbers also indicating a growing divide in the travels of rural and urban Indians. The previous survey was conducted from July 2014 to June 2015.

As per the Ministry of Statistics and Programme Implementation's (MoSPI) Domestic Tourism Expenditure Survey — released on Wednesday — an estimated 10 crore overnight trips were made in the 365 days prior to households being quizzed.

These were for a variety of 'leading purposes', or main reasons: holidaying, leisure and

• Travel trends

30% Families from UP, West Bengal, and Bihar together accounted for over 30% of all 'health and medical' related journeys

● The percentage of rural households reporting at least one overnight trip was 35.2% in 2025-26, down from 36.6% recorded in the 2014-15 survey, while the per-



age for urban households has risen from 35.7% to 37.7%



recreation; pilgrimage and religious; health and medical; and shopping.

And while households who travel are doing so more frequently now, the fraction of rural families taking trips has reduced.

Rural families holidaying less

As per the latest survey, the percentage of rural households who took at least one overnight trip declined to 35.2% from 36.6% in 2014-15. Meanwhile,

the percentage for urban households rose from 35.7% to 37.7%.

Further, for every 100 rural households, the number of overnight trips for holidays and recreation completed in the last 365 days declined to 4 in 2025-26 from 5 in 2014-15.

For urban families, the number increased from 12.7 to 13.5. As such, urban households are taking more holidays than before, while rural families are taking fewer such trips.

The latest Domestic Tour-

ism Expenditure Survey covered 2.46 lakh households from across the country, except villages in the Andaman and Nicobar Islands which are difficult to access. Of the surveyed households, 1.43 lakh were from rural areas and 1.04 lakh from urban.

MoSPI cautioned that the results of the latest survey are not "strictly comparable" with the 2014-15 one. This is because the 2025-26 survey sought information on overnight trips for 'pilgrimage and religious' in the reference period of 365 days prior to the household being questioned.

Meanwhile, the 2014-15 survey's questions on 'pilgrimage and religious' pertained to the 30 days before the visit by MoSPI officials.

However, MoSPI itself compared the results of the 2025-26 and 2014-15 surveys.

In a press statement issued on Wednesday, it said the number of overnight trips per 100 'tourist households' — those who made at least one overnight trip in the last 365 days — had increased from 118 in 2014-15 to 127 in 2025-26 for

rural areas. For urban, the ratio had increased from 121 to 132. As explained above, the 2014-15 figures of 118 and 121 mentioned by the statistics ministry do not include overnight trips made for 'religious and pilgrimage' purposes as the previous survey had asked this question for the prior 30-day period.

In 2014-15, 8 overnight trips per 100 tourist households were made in rural areas in the previous 30 days, while 11 were made by urban households.

Overall, the 2025-26 survey showed holidaying was the main purpose for 22% of trips, pilgrimage and religious trips 48%, and health and medical reasons were behind almost 30% of them.

Tamil Nadu accounted for 23.8% of overnight holiday trips, followed by Maharashtra (9.6%), and Karnataka (8.6%).

Tamil Nadu also led in the 'pilgrimage and religious' category and was responsible for 14.8% of these trips, followed by Uttar Pradesh (13.6%), and Rajasthan (9.2%).

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